

Council Meeting
October 23, 2019
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The Claremont City Council held a meeting on Wednesday, October 23, 2019, in the Council Chambers of City Hall.

The meeting was called to order by Mayor Lovett at 6:49 p.m. (Note: Council met in a non-meeting before this meeting to discuss negotiations).

Members of the Council present were:

At-Large Councilor Claire Lessard
Ward I Councilor Andrew O'Hearne
Ward III Councilor Jonathan Stone
Assistant Mayor Allen Damren
Mayor Charlene Lovett
At-Large Councilor Kristin Kenniston
At-Large Councilor Abigail Kier
At-Large Councilor Nicholas Koloski
Ward II Councilor Scott Pope

Also present:

Edward Morris, City Manager

AGENDA CHANGES

Council moved Elderly Exemptions and Veterans Credit to the beginning of the meeting.

Elderly Exemptions and Veterans Credit

Council agreed to discuss Elderly Exemptions first.

Steve Hamilton, Interim Assessor, said he was making recommendations for adjustments on the qualification limits for assets and income that haven't been adjusted in a number of years. The City requalifies applicants every 5 years, so if there is no change to the limits, but inflation increases, then some who are qualified, may later not be qualified. It's important to adjust the limit amounts to keep up with inflation. He is not recommending changes to the Elderly benefit amount, because the City just went through a revaluation and the base of residential properties didn't increase significantly. These exemptions are a reduction in the assessed value of a property. A tax credit is a dollar amount that the tax bill is reduced. The Veterans tax credit is \$125. Also, there is a credit for Veterans that are totally and permanently disabled and incapable of returning to work.

After some discussion, Mayor Lovett asked members of the audience if any of them wished to discuss the Elderly Exemption. None did.

When asked how this would affect Claremont's tax rate, Mr. Hamilton said about six months ago, the Council had talked about him doing a survey. He is not professionally able to construct

a survey, however, if Council would like to continue with that, people could be hired for that purpose. The City doesn't know much about the people who don't qualify. There is another program available to taxpayers, seniors and those who would qualify, based on physical disability. It is a process of deferring taxes on the property. Taxes can be deferred with 5% interest and taxes can be deferred up to 85% of the equity in the home. This becomes a lien on the property. Exemptions for disabled and elderly may be abated for poverty or the inability to pay. The deadline to apply is April 15th.

These programs shift the taxes to other tax payers.

Mr. Hamilton said regarding new applicants, he doesn't see a large increase; there may be some additional applicants. This represents 18 cents on the tax rate. He recommends the Council revisit this annually.

Linda Howard, Ward 3, said at the February meeting, information was given that the average exemption amount given by surrounding communities was \$34,000, so why is Claremont talking about only \$30,000.

Mr. Hamilton said that amount given in February was based on the 2017 analysis and this is based on the 2018 analysis.

Mayor Lovett said that the City's Code regarding this issue is out of date and needs to be reviewed.

There was a discussion of sending this to the Finance and Policy Committees for further discussion. Mr. Pope said since these numbers are not reviewed often, he proposed the limits be increased: married up to \$35,000, \$25,000 for single, and \$65,000 for assets. Mayor Lovett said there was growing consensus to go with Mr. Hamilton's numbers now and then send his thoughts to the committees for discussion. Mr. Pope said he was not part of that consensus.

A motion was made by Ms. Kenniston and seconded by Mr. O'Hearne to adopt Mr. Hamilton's recommendation for the Elderly Exemption income and asset limits of 6.52% increase: single \$23,400, married \$30,900, and asset limit \$63,900 for both married and single, with the recommendation that this go to the Policy and Finance Committees to further study these amounts for recommendation back to the Council.

Messrs. Koloski and Pope said they would agree to this now, but felt the amounts were not high enough.

Council agreed to bring this back at the first meeting in December.

Voice vote: motion carried 9-0.

A motion was made by Mr. Damren and seconded by Ms. Kenniston to bring the recommendations of the Policy and Finance Committees back to the Council at the first meeting of December.

Voice vote: motion carried 9-0.

Next, Council discussed the Disabled Exemption income and asset limits.

Mr. Hamilton said there is no recommendation to change the benefit amount. He is recommending an increase of the income limits for single to \$20,900, married to \$28,300, and asset limits to \$37,300 for both married and single. He recommended following the same process as discussed earlier.

A motion was made by Ms. Kier and seconded by Mr. O’Hearne to accept Mr. Hamilton’s recommendation for the Disabled Exemption income and asset limits of 6.52% increase: single \$20,900, married \$28,300, and asset limit for both married and single \$37,300, with the recommendation that this go to the Policy and Finance Committees for review and to bring a recommendation back to the Council at the first meeting in December.

Voice vote: 9-0.

Next discussion was for Veterans Tax Credit.

Mr. Hamilton said the amount of this credit for Claremont is \$125 per year, which is more than the standard \$50, however there are a lot more generous communities. The Legislature took action to increase the limit to \$750. Moving to the maximum amount would be a significant increase in the tax rate. That would be a 48-cent impact on the tax rate. He talked about the All Veterans Tax Credit which would extend to all veterans who have served 90 days or more, not just during war. The municipality can phase it in over three years. The range of impact for newly qualified is estimated at 5-10% of the regular service veterans.

Mayor Lovett opened the discussion to the public.

Mayor Lovett said she received an email from Cindy Haynes, Ward 2 resident. Ms. Haynes said this needs to be raised to \$500 in order for Claremont to show its appreciation to its veterans.

Lloyd Smrkovski, Ward 3, said this is a thank you to veterans. He acknowledged a change would be an additional tax burden on everyone in Claremont. He talked about the inequity of the tax credit for 100% service-connected disability rating, but no consideration for those with lesser ratings. He said he would follow up with the state. He suggested giving a certain percentage of the Veterans Disability Credit based on the percentage of disability.

A motion was made by Mr. Stone and seconded by Ms. Kier to raise the Veterans Credit to \$500 and also send this to the Finance and Policy Committees for review and to bring this back to the Council at the first meeting in December.

Mayor Lovett said this creates a tax shift of 23 cents.

At 7:53 p.m., Mayor Lovett said she will have to recuse herself from this vote as she would benefit directly.

Mr. Koloski said the Veterans Tax Credit the City offers (\$125) is a slap in the face to Veterans and that he was hoping 23 cents could be found in the budget.

Discussion continued for a few more minutes and at 7:57 p.m., Mayor Lovett recused herself and stepped down from the Council table.

Roll call vote:

Lessard - yes

O'Hearne - yes

Stone - yes

Damren - yes

Kenniston - yes

Kier - yes

Koloski - yes

Pope - yes

Motion carried 8-0.

At 7:58 p.m. Mayor Lovett returned to the Council table.

MAYOR'S NOTES

- Governor's office has asked her to serve on the State Workforce Innovation Board. She has accepted and will begin working on the Board on Friday, October 25.
- Valley Regional Hospital will host its annual Wellness Fair on October 26, 9 a.m. – 1 p.m.
 - Free health screenings
- Claremont Sugar River Rotary is hosting a Meet Your Neighbor potluck event at Arrowhead Thursday, October 24, 6-8 p.m.
- Ribbon cutting ceremony for the gates at Mountain View Cemetery, Wednesday, October 30, 2 p.m.
- Election November 5. Please vote
- Supervisors of the Checklist will meet Friday, October 25, 7 p.m.-7:30 p.m. in the City Clerk's office to register new voters and make corrections to the voter checklist

Mr. Damren recognized the volunteers doing paintings on the wall of the Children's section at the Fiske Free Library (scenes from children's books): Crystal Deveney, Susan Walker, Sarah Breisch, Erica Sweetser, Julie Richardson, and McKayla LaRocque; LaValley's donated a ladder, and several children are involved with the painting.

Ms. Kenniston said the Supervisors of the Checklist session is the last opportunity to change party affiliation before the election. Saturday, 11-11:30 a.m. people can register to vote. Also, there will be same day voter registration.

Mr. Koloski said the Claremont Fire Department will hold its Annual Turkey Raffle, November 7th at the Fire Department.

CITY MANAGER'S REPORT

- The City will apply for a road safety audit grant, 100% grant through NH Department of Transportation. This is for Charlestown Road where there have been two fatalities. The grant is to determine how to make the road safer. It is due December 1st.
- The Goddard Block will be a workforce housing, mixed income property. Applicants must meet certain criminal report standards; they must meet financial obligations of the lease; there will be an onsite "concierge" working full time to help residents find services, etc. They have been working on preleasing.
- In August Ms. Kenniston had discussed part-time minute takers. The portable device didn't work well in the Council meeting, but it does work in smaller settings. Right now, there is very limited space on website, and we don't have storage for larger audio files. This can be addressed with the new website.
- deForest Bearse, Resource Coordinator, is working on a list of which boards may need minute takers. There have been no applicants for the minute taker position. Staff will continue to work on that.
- 2018 abatement appeals – four property abatement appeals have been filed. Two have been filed at the Board of Tax and Land Appeals and two have been filed in Superior Court, they are utilities.
- Two people have been appointed to the Board of Assessors; Interim Assessor Steve Hamilton will work with them regarding the appeals.
- The City has filed an extension of the MS-1. The plan is to file the MS-1 by the end of the week. The extension is not expected to affect the tax rate.
- October 26, 10 a.m.-2 p.m. CVS parking lot Drug Take Back Day; safe needle disposal; first time to take e-cigarettes/vaping devices (remove batteries prior to disposal)
- October 22, Police Chief Mark Chase and Captain Brent Wilmot presented Active Shooter Training at the CSB Community Center; 20 people attended
- Fall cleanup November 4-November 8; leaves and grass in paper bags; no call backs; after November 8, take leaves to the Transfer Station

Regarding 66 Pleasant Street, Mr. Morris said there were two concerns, lack of communication and poor signage which led to truck problems. The Traffic Advisory Committee (TAC) discussed using a NH Department of Transportation model to make an internal procedure and the TAC discussed what is considered a substantial project. The procedure will cover how to handle smaller projects and larger projects including communication and traffic plans.

There was a discussion about the vendor notifying abutters and a possible breach of the contract. Mr. Morris said he can talk to legal about that. He said going forward, Staff needs to also follow-up with notifications to abutters. The City can make sure that it is part of the procedure to determine if the companies supplying bids are qualified to do the job.

As part of the bid opening, Mr. Morris agreed the envelopes containing the bid should be date and time stamped and that the envelopes should be kept.

Councilors expressed concerns about no fencing to protect pedestrians and a steam roller that was running with no one around.

At some point, Council would like an overview of quality control checks for projects.

Mr. Koloski talked about doing searches on the current website and that the search shows ads. He would like the new website search to go directly to the City information.

CITIZEN'S FORUM

None

OLD BUSINESS

Ordinance 572 Merit Plan Salary Scale Waiver – Second Reading

The purpose of this proposed change is to increase the maximum amount of compensation for non-union employees who are classified within Grade 6 of the City's Merit Plan and as shown on Attachment C of the 2019 Non-Union Employee Pay Schedule. No other grades or salary ranges will be impacted by this amendment. The current maximum salary for a Grade 6 employee is \$45,699. The proposed modification seeks to increase that sum to \$47,079.

The amendment will allow the City's administration to review and possibly increase the salary of one longtime employee who has reached the maximum compensation within Grade 6 and likely is deserving of a slight pay increase (no other employee is expected to qualify or receive any additional pay in the event of the Council's approval of this Ordinance). The potential increase to this particular employee's salary remains within the discretion of the City Manager from which all that is being asked of the City Council is to merely enlarge the salary range within Grade 6 to allow for this opportunity.

Enactment of this Ordinance will repeal and readopt Attachment C of the 2109 Non-Union Employee Pay Schedule. This change is requested by the City Manager.

A motion was made by Ms. Kier and seconded by Ms. Kenniston to suspend Council Rules to not have to read the ordinance.

Roll call vote:

Lessard - yes

O'Hearne - yes

Stone - yes

Damren - yes

Kenniston - yes

Kier - yes

Koloski - yes

Pope - yes

Lovett - yes

Motion carried 9-0.

Mr. Pope read the Explanation of Proposed Action.

Mayor Lovett opened the public hearing.

Mr. Morris said that at the last meeting, there were questions about whether or not the employee could be moved to a grade 7 or leave that person at grade 6 and increase the maximum pay scale. A Personnel Advisory Board (PAB) meeting was held to advise the Board of the Council's question and the Board members were asked to review the position to see if it warranted being regraded.

PAB members Candy Crawford, Ward 2, and Meg Hurley, Ward 2, introduced themselves. Ms. Crawford said it seemed prudent to leave the position as a grade 6 and increase the maximum salary. The Board was told there would be an evaluation of the entire Merit Plan. Ms. Hurley said this one individual hasn't received a pay increase in 6 years. The Merit Plan is being reviewed. Ms. Crawford said it is not in the PAB's purview to look at one position. The review of the Merit Plan will do that. Ms. Crawford said this is just to address the one Merit Plan employee that didn't get the increase.

Mr. Morris said the RFQ is expected to go out early next week and it will take about 6 months for the work.

Mr. Stone asked who serves as chair of the PAB. Ms. Crawford said this Board only has three members; they don't meet often, so they rotate. The Board doesn't feel it is necessary to have a formal chair.

Mayor Lovett closed the public hearing.

A motion was made by Mr. Pope and seconded by Mr. Damren to adopt Ordinance 572 Merit Plan Salary Scale Waiver on second reading.

Voice vote: motion carried 9-0.

Council discussed the posting of the PAB meeting. Mr. Morris said this one was not posted on the website as we normally do. Mr. O'Hearne said holding the meeting in the City Manager's office is slightly intimidating. Council suggested holding it in a public place.

Regarding public notice of the PAB and the Licensing Board, Mr. Morris said in the future, notices would be sent to all the departments for posting.

Mr. O'Hearne thinks the PAB should have a chair. Mr. Morris said he checked the Charter and there is no requirement for the PAB to have a chair. Also, according to the City Code, there is no requirement for any other board to have a chair. Mayor Lovett said that is normally covered by the commission/board rules. Mr. Stone suggested it is good practice to have a chair.

Holiday Display

Mayor Lovett said the City is moving forward with having a holiday display. Legal counsel is working with the City Manager to make sure the display is legal.

Mr. Morris said the Parks and Recreation Department is working with the Fire Department and volunteers to put up lights. The lighting of the Park will be on Thanksgiving weekend. He will work with legal counsel, the Parks and Recreation Department and volunteers to make sure the display is set up in accordance with our attorney's direction and the law.

NEW BUSINESS

Police Commission LSR Language

At 8:58 p.m., Councilor O'Hearne stepped down from the Council table and went to the podium. He introduced himself as Representative Andrew O'Hearne, Ward 1, saying the final draft of the LSR was not ready. He hoped it would be by the end of next week. He said he asked Representatives Stapleton and Cloutier to sign on. The wording will be the same as the City Code, except Manager will be out and will be replaced with Council. It will take effect upon passage.

At 9:00 p.m., Councilor O'Hearne returned to the Council table.

Plan for Unrestricted Municipal Aid

On February 7, 2019, the City of Claremont sent a letter to Governor Sununu asking for surplus funds to complete three capital projects:

- Sidewalk and drainage issues which are causing flooding in our downtown area. Estimated cost \$122,000
- Energy efficiency upgrades to our Visitors Center (replace and improve insulation, vents, wind blocks as well as upgrading to LED lighting. Estimated cost \$25,000
- Energy efficiency upgrades in our Arrowhead Lodge (replace the roof, heating system, and exterior windows and doors. Estimated cost \$95,000

With the allocation the City has received for this fiscal year (\$341,152), the City would like to ask the Council to authorize Staff to move forward preparing these projects and getting actual, instead of estimated prices. If the estimated pricing is correct it would leave \$99,152 to fund another project. The City would also like to add replacing the air handling units on the Opera House roof with an estimated cost between \$140,000 and \$160,000. It is understood the estimated costs of all these projects leaves the City short about \$50,000, but Staff would like to get better pricing before finalizing the list and asking for approval to spend the money. The approval to spend the money will need a public hearing.

Mayor Lovett said this year's payment has been received.

Mr. Morris said he is working with Department Heads on the above three projects and he asked for Council's permission to go forward with these RFPs to determine costs.

Councilors agreed they would not like to short the Arrowhead projects. There was a question about solar for the Lodge roof.

Regarding sidewalks and drainage in the downtown, Mr. Morris said when the City gets better estimates, Planning and Development Director Nancy Merrill and Public Works Director Victor St. Pierre can give the Council an explanation of the Pleasant Street project.

Chuck Allen, Arrowhead Recreation Club, said regarding alternative energy, that will be years down the road. There is no good facing roof for solar. Other alternatives would really have to be studied. The roof needs to be checked for weak spots before reshingling. The shingles are in bad shape; the windows and doors are from the 1960s and need to be replaced with energy efficient materials; the furnace and air conditioner are very inefficient. He would not do the AC on the main floor until the doors and windows have been done. Insulation was done in the 1990s; it would be a good idea to check the value of the insulation.

Mr. Damren requested of the City Manager to consider for these projects and others whether or not it would be beneficial to hire a clerk of the works to check the quality of the work being done, with that person reporting to the City Manager.

Consensus of the Council for the City Manager to move forward with the RFPs.

Tax Deeded Properties

At the July 24, 2019, Council meeting, eight Twin State Property Maintenance properties were added to the Refuse Tax Deed list pending demolition of 139 Main Street, which is another Twin State Property Maintenance property, in order to lien the other properties for the cost of demolition of 139 Main Street. Demolition of 139 Main Street is still pending.

Mr. Morris said at this time, a contract has been written with United Construction for the demolition of 139 Main. The property owner of 147 Main is having trouble finding a contractor to shore up his side of the building. Contractors are unwilling to do the work because it is difficult/dangerous, or contractors are booked for the season. As soon as 139 Main is down, the City will have better numbers.

Mr. Stone asked that when this comes back to Council to bring forward the values of the properties. He asked if there are any current liens against the company. Mr. Morris can get the information back to the Council.

FUTURE AGENDA ITEMS AND DIRECTIVES

Mr. Koloski would like a discussion about properties that are not Code compliant and what is needed for enforcement.

Mr. Stone asked about the status of hiring a full-time Assessor. Mr. Morris said he is working with Steve Hamilton and his company for a longer contract with a training clause to bring one of our employees up through the process to be an Assessor. It's probably a 3-4 year process. Mr. Stone asked if the Council wanted to discuss creating an Assessing Division with a Director. Mr. Morris is working with Mr. Hamilton and they are working out a plan to bring to the Council that will help move the City forward regarding Assessing.

Mr. Stone asked about posting minutes on the website. He said Council minutes have not been posted since May 11th.

The second meeting for November is the Wednesday before Thanksgiving. There was consensus of the Council that there would be no second meeting in November, at this time. It will be readdressed at the November 13th meeting.

The second meeting in December will be addressed at the first meeting in December.

Canvass the Vote will be held Thursday, November 7th. Council agreed to meet at 6:00 p.m.

Consensus of the Council to discuss Policy and Finance Committees as standing committees. Mr. O'Hearne said the Policy Committee sunsets at the end of December; he thinks it should be left to the new Council to discuss.

Mayor Lovett said the entire Council received an email from Rebecca MacKenzie requesting a task force for climate control issues; that discussion will go on the next agenda.

CONSULTATION WITH LEGAL COUNSEL

None

ADJOURNMENT

At 9:29 p.m., a motion was made by Ms. Kenniston and seconded by Mr. O'Hearne to adjourn.

Voice vote: motion carried 9-0.

Respectfully Submitted,

Dorée M. Russell
Clerk to the Council